

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,	)	
AMERICAN TRUCKING ASSOCIATIONS, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	FMC Docket No. 20-14
OCEAN CARRIER EQUIPMENT MANAGEMENT	)	
ASSOCIATION, INC.; CONSOLIDATED CHASSIS	)	
MANAGEMENT, LLC; CMA CGM S.A.; COSCO	)	
SHIPPING LINES CO. LTD.; EVERGREEN LINE	)	
JOINT SERVICE AGREEMENT, FMC NO. 011982;	)	
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK	)	
A/S; MSC MEDITERRANEAN SHIPPING	)	
COMPANY S.A.; OCEAN NETWORK EXPRESS	)	
PTE. LTD.; WAN HAI LINES LTD.; YANG MING	)	
MARINE TRANSPORT CORP.; AND	)	
ZIM INTEGRATED SHIPPING SERVICES,	)	
	)	
Respondents.	)	
	)	

RESPONDENTS' CROSS MOTION FOR AMENDMENT OF
SCHEDULING ORDER TO COMPLETE DOCUMENT PRODUCTION
AND IMCC'S RESPONSE

MSC Mediterranean Shipping Company S.A., ZIM Integrated Shipping Services, COSCO Shipping Lines Co. Ltd. and Wan Hai Lines Ltd. (collectively, the “Motion Respondents”) have submitted their response in opposition to the Complainant’s Motion to Compel Discovery and for Sanctions (the “Motion”). In accordance with Paragraph 11 of the Initial Order issued in this proceeding on July 30, 2020, the Motion Respondents’ opposing counterstatements and counterarguments have been inputted into the Complainant’s Motion to Compel with Motion Respondents’ Counterstatements that accompanies this filing. In addition, for the reasons stated below, all Respondents to this proceeding cross move for an amendment of

the current Scheduling Order, extending the time to complete document production for an additional thirty days.

Complainant's Response: MSC, ZIM, COSCO, and Wan Hai (the “non-producing Respondents”) intentionally waited until 4:23 p.m. of the final day of document discovery to inform IMCC that they would not comply with the Presiding Officer’s Scheduling Order. Nothing in their Opposition to the Motion to Compel or this Cross-Motion to Amend the Scheduling Order says otherwise. Respondents are simply trying to avoid responsibility for their decision to not comply with the Amended Scheduling Order for strategic advantage. As explained below, the motor carriers’ productions contain data that are likely what Respondents seek (which in any event is irrelevant and/or not in dispute). IMCC does not oppose an extension because, as a result of Respondents’ conduct, it has no choice. However, IMCC respectfully requests that the Presiding Officer ensure that non-producing Respondents stand by their representations, and inform IMCC promptly in the event of a change in circumstances.¹

I. BACKGROUND OF THE PARTIES’ DISPUTES

In addition to those reasons set forth in the accompanying Complainant’s Motion to Compel with Motion Respondents’ Counterstatements, all Respondents request an extension of time to complete document production on the grounds that (1) additional time is needed to obtain, or compel, production of responsive documents from the subpoenaed non-party IMCC members (“IMCC Members”) who did not respond or who responded inadequately to Respondents’ discovery requests; and (2) to analyze the substantial quantity of documents

¹ Pursuant to paragraph 11 of the Initial Order, Complainant’s Responses have been inserted into Respondents’ motion. Complainant’s Responses have been highlighted in yellow for ease of review..

produced by three of the subpoenaed IMCC Members just prior to the scheduled end of document production which, in total, amount to approximately one million pages.

Complainant's Response: The Respondents must request an extension because of their decision to violate the Presiding Officer's Amended Scheduling Order, not because of any supposed deficiencies in non-party document productions. Moreover, Respondents have known the non-parties' positions on these issues for *months*. And as an initial matter, much of the information which Respondents claim was not produced is irrelevant. IMCC does not seek reparations—only injunctive relief—and so the precise amount of charges paid to Respondents or their designated IEPs for MH container movements is not in dispute, nor has Complainant ever contested that motor carriers may rebill such charges to their customers. Thus, Respondents' misunderstandings as to the motor carrier productions should not delay the schedule.

Regardless, even now, Respondents do not bring a motion to compel because they have not fully explored with third-party motor carriers ways of narrowing or resolving those disputes. Much of the data Respondents say they seek from motor carriers is likely *already* in the productions. And if any information is missing, the non-party motor carriers remain open to discussing production of additional documents, or negotiating stipulations. But first Respondents must explain why the voluminous data that has already been produced by the non-parties is insufficient.

The schedule will depend on when Respondents MSC, ZIM,² COSCO, and Wan Hai complete their productions. Respondents did not provide IMCC with any of the detailed reasons

² ZIM made a substantial production on September 14, shortly after it filed its opposition to IMCC's motion to compel. IMCC is reviewing that production.

as to why the non-producing Respondents could not meet the deadline. The non-producing Respondents were undoubtedly aware of these issues long before 4:23 p.m. on the very last day of the document discovery period, the Friday before a holiday weekend, and could have explained before then the reasons for the delay. They never made any attempt to do so. Respondents only explained these reasons *for the first time in the Respondents' opposition brief*. And presumably the non-producing Respondents should have been able to answer questions regarding the delays and timelines during the subsequent meet and confer. Yet they were unable to do so. Further, the Respondents' brief marked the first instance in which IMCC received *any* estimate from COSCO and Wan Hai as to when they will produce.³ Opp.⁴ 8. Complainant and the non-parties finished their productions on time, and Respondents now have the luxury of reviewing those documents for months. The non-producing Respondents' decision to flout the Presiding Officer's order has denied IMCC the ability to do the same for their documents, and Complaint has suffered prejudice as a result.

A. Productions by the Subpoenaed Non-Party IMCC Members

The real parties in interest in this case, which actually possess documents that are material to the IMCC's claims and the Respondents' defenses to same, are not the IMCC or the ATA, but the IMCC Members who are not parties to this litigation.

1. Nature of Documents Requested From Non-Party IMCC Members

³ IMCC also respectfully notes that some representations have changed. For example, MSC initially estimated a completion date of September 13. Golden Decl. ¶ 8 & Ex. 4. Yet MSC now forecasts its production at September 27. Opp. 8.

⁴ "Opp." refers to Respondents' Opposition to IMCC's Motion to Compel and for Sanctions. "Raleigh Decl." refers to the Declaration of Christopher Raleigh in Opposition to IMCC's Motion to Compel and for Sanctions and in Support of Respondents' Cross-Motion to Amend the Schedule. "Golden Decl." refers to the Declaration of David Golden in Support of IMCC's Motion to Compel and for Sanctions.

In the Complaint, the IMCC claimed that Respondents' allegedly unlawful practices caused its members and "their shipping and receiving customers, and ultimately the consuming public," (but not the Complainant) to be overcharged in excess of \$1.8 billion (see paragraphs 4 and 82 of the Complaint) and that the Complaint was brought on behalf of these members (see paragraph 1 of the Complaint). Yet, in response to a discovery request for "(a)ll documents supporting or relating to the allegation of overcharges of \$1.8 billion..." the Complainant objected to this Request on the grounds, in addition to others, that "it seeks Documents not in Complainant's possession, custody, or control." Put simply, the IMCC claimed that it did not have any of the documents which proved or disproved the allegation of damages that it had made in the Complaint, under oath.

Notably, this allegation regarding alleged overcharges is suspect because Respondents are in possession of information which gives them a reasonable basis to believe that the motor carriers whom the Complainant claims to represent, i.e., the IMCC Members, not only pass through chassis usage and per diem charges to their customers but impose a substantial mark-up, i.e., charge their customers more than the IMCC Member is charged by the chassis provider. This fact alone undercuts the IMCC argument that Respondents have caused the alleged overcharges, and indeed whether IMCC Members have been overcharged or even sustained any damages at all, much less the \$1.8 billion alleged in the Complaint. It is also highly relevant to the reasonableness of the practices that are at issue in this proceeding.

To flesh out this evidence, several categories of documents were requested via subpoena from fourteen IMCC Members⁵ on this issue; specifically, documents showing "(vii) the amount paid to the chassis provider; and (viii) the amount billed by You to your customer for use of the

⁵ According to its Interrogatory answers, IMCC has 170 members, so the number of subpoenaed non-party IMCC members was very modest.

chassis.”⁶ Related to this request, Subpoena RFP No. 10 sought documents “which relate to the claim that You were overcharged for chassis used for Merchant Haulage movements” and Subpoena RFP No. 11 requested documents “which relate to the claim that you suffered financial injury through the payment of overcharges of chassis used for Merchant Haulage movements.”⁷ IMCC’s counsel, who represented the subpoenaed IMCC Members, objected to the production of such documents. However, following a meet and confer to resolve this issue, we confirmed those categories of documents that would satisfy the requests for this information from the subpoenaed IMCC Members in a May 19, 2021 email:

Subpoena RFP Nos. 10 and 11: this will clarify that production of the following categories of documents will satisfy these requests: (1) invoices rendered by chassis providers to Motor Carriers for Use Charges incurred during Merchant Haulage moves; (2) invoices rendered for those Merchant Haulage moves by Motor Carriers which assess charges to their customers for the use of those chassis; and, (3) other business records which show the charges assessed by equipment providers for such chassis and the charges from Motor Carriers to their customers for the use of those chassis. (Raleigh Declaration, Exhibit 3)

Thereafter, in an email dated May 20, 2021, IMCC’s counsel confirmed their agreement to produce these categories of documents:

Subpoena RFP Nos. 10 and 11. We acknowledge your clarifications articulated below, and you will receive documents (including invoices, data, price sheets and / or other documents kept in the ordinary course of business responsive to those clarifications.” (Raleigh Declaration, Exhibit 4)

Complainant’s Response: First, IMCC rejects Respondents’ assertion that the motor carriers are the “real parties in interest.” IMCC is the party in interest, and represents motor carriers as a matter of associational standing.

⁶ See Request no. 4 of the schedule of requested documents served on the IMCC Members, attached to the Raleigh Declaration as Exhibit 2 (“Requests for Documents). The Requests for Documents served on each IMCC Member is identical.

⁷ Raleigh Declaration, Exhibit 2.

Second, the motor carriers' documents do contain the requested information, pursuant to the parties' agreement. *See* Raleigh Decl. Ex. 3 (requesting production of "business records which show the charges assessed by equipment providers for such chassis and the charges from Motor Carriers to their customers for the use of those chassis"); *id.* Ex. 4 (agreeing to provide "invoices, data, price sheets and / or other documents kept in the ordinary course of business responsive to those clarifications."). Each motor carrier keeps this information in its own format. If Respondents believe these ordinary-course-of-business documents and data are not sufficient to meet their needs, then they need to explain why before these non-parties incur the burden and expense searching for additional (and irrelevant) documents. Not a single Respondent has explained why the produced data and records are insufficient. If Respondents have issues with a particular production, they should articulate their concern with enough specificity so that the relevant motor carrier can explain the records or negotiate a stipulation to address it.

Third, the precise amount of overcharge is not in dispute in the case. Motor carriers are the direct purchasers of chassis used in merchant haulage ("MH") movements. As a result, motor carriers first pay the overcharge resulting from Respondents' unreasonable conduct. Complainant has never contested that motor carriers may then rebill some of those charges to their customers cases and may do so with a mark-up. But the precise amount of charges, rebillings, or mark-ups is simply not relevant to this proceeding: neither IMCC nor its motor carrier members seek reparations (i.e., damages) for these overcharges. Rather, IMCC respectfully requests an Order enjoining the Respondents' unlawful conduct. To demonstrate associational standing, it is only necessary to show that at least one IMCC member has been harmed by the Respondents' conduct as alleged in the Complaint. Moreover, Respondents have no defense under the direct purchaser rule that motor carriers "pass on" overcharges to their

customers. *See In re Vehicle Carrier Services*, 1 F.M.C.2d 440, 446 (FMC 2019) (indirect purchasers lack standing to “recover [] reparations”).⁸ Thus, the precise amount of the overcharge is not at issue. Regardless, in the interests of expeditiously resolving the matter, nonparty motor carriers have provided information that the Respondents have requested. The non-party motor carriers have repeatedly stated this consistent position, giving Respondents plenty of time to address the issue appropriately. *See, e.g.*, Raleigh Decl. Ex. 4 (“you will receive documents (including invoices, data, price sheets, and/or other documents kept in the ordinary course of business) responsive to those clarifications”); Third Joint Status Report (Aug. 13, 2021) (“JSR 3”) at 7 (“Complainant responds that the non-party motor carriers . . . have collectively produced and will continue to produce . . . **voluminous data** responsive to Respondents’ subpoenas).

2. Productions by Nonparty IMCC Members

There has been a tremendous divergence in the productions from the subpoenaed IMCC Members, which are summarized below:

- No Response Based on “Not Geographically Relevant”
 - Four motor carriers did not respond to the subpoena on the grounds that they do not operate in the geographic areas to which the parties allegedly agreed to limit discovery: Best, Devine, Excargo, and Triple G.⁹

⁸ An issue corollary to the direct purchaser rule—whether in a claim **for reparations**, a Respondent can raise an affirmative defense of pass-on—is currently before the Commission. *See* Order for Supplemental Briefing, Dkt. 3, *TCW Inc. v. Evergreen Shipping Agency (America) Corp. & Evergreen Line Joint Service Agreement*, No. 1966(I); *cf. Hanover Shoe Inc. v. United Shoe Mach. Corp.*, 392 U.S. 481, 487-94 (1968) (in antitrust suit **for damages**, defendants have no “pass-on” defense). Indeed, it is precisely because of the motor carriers’ rebilling of overcharges that motor carriers’ injury as direct purchasers also becomes injury to the broader shipping public.

⁹ Respondents maintain that the geographic limitation which these four IMCC Members have hid behind to avoid producing any documents should not be allowed to frustrate production of documents material to the IMCC Members’ alleged damages and the Respondents’ defenses. Respondents reserve their right to move to compel these four IMCC Members to produce documents responsive to the subpoenas served upon them.

- No Response Based on “Doesn’t Rent or Lease Chassis”
 - RDS did not respond on the grounds it does not rent or lease chassis for the movement of intermodal containers.
- No Response/No Explanation:
 - Ability Tri-Modal¹⁰ and Lightning Transportation¹¹
- Motor Carrier Responses
 - (a) Bulldog – 57 documents, 57 pages. No invoices to cargo interests or tariffs.
 - CPG – 29 documents, 114 pages. No invoices to cargo interests or tariffs.
 - Evans – 101,917 documents, 116,679 pages. Review and analysis of this production has not been completed due to its size.
 - IMC – 7 documents, no invoices to cargo interests or tariffs.
 - Reliable – 166,758 documents, 228,379 pages. Review of this production has not been completed due to its size.
 - TCW – 4,406 documents, 6,394 pages. No invoices to cargo interests or tariffs.
 - Trimodal – 15 documents, 292 pages. No invoices to cargo interests or tariffs.
 - Ventura – 2 documents, 3 pages. No invoices to cargo interests or tariffs.
 - IMC Group – 215,079 documents, 707,808 pages. Review and analysis of this production has not been completed due to its size and the recent date of production.

The wide disparity in the volume of documents produced by the IMCC Members raises serious questions about the completeness of some productions and the reasonableness of others. Other subpoenaed IMCC Members have not responded at all. However, most striking is the failure of the vast majority of subpoenaed IMCC Members to provide the invoice information

¹⁰ **Complainant’s Response:** “Ability Tri-Modal” and “Trimodal” are the same motor carrier. *See infra.* As a result, Respondents have received documents for Ability Tri-Modal.

¹¹ **Complainant’s Response:** Below-signed counsel does not represent Lightning Transportation.

that their counsel committed to produce. (Raleigh Declaration, Exhibit 4) As noted above, this information is highly relevant to the veracity of specific allegations in the Complaint regarding the damages allegedly sustained by the IMCC Members, and the Respondents' defenses.

Complainant's Response: Respondents have been on notice for months on these issues, yet have not filed any motion to compel. Respondents' argument that the schedule must now be amended to address them is pretext to cover up the non-producing Respondents' failure to comply with the Presiding Officer's schedule.

Motor carriers that do not operate within the geographically relevant areas covered by the scope of discovery in this proceeding are not in possession, custody, or control of any documents responsive to the subpoenas. The motor carriers have a good-faith basis for this position, as the Presiding Officer has noted. *See* Order (June 9, 2021) at 2 ("nonparties served discovery exceeding the geographic scope of discovery directed to parties may have a basis to challenge that discovery" although the party may "take needed discovery at a later date"). Further, the motor carriers have given Respondents *months* of notice that they would limit discovery to the relevant geographic areas. First Joint Status Report (Mar. 1, 2021) at 1-2 ("the Parties have conferred and propose limiting certain categories of initial Party document discovery to the following geographic areas: the Ports of Long Beach and Los Angeles, the Port of Savannah, intermodal terminals in the Chicago area, and intermodal terminals in the Memphis area"). The Parties came to this agreement at the Presiding Officer's suggestion. Order (Jan. 29, 2021) at 9 ("the parties are instructed to discuss whether . . . it would be helpful to initially limit discovery (for example, to a limited geographic area or time period . . . with additional discovery permitted if the [summary decision] motion is denied."). The motor carriers have not wavered from this clear position. *E.g.*, Raleigh Decl. Ex. 4 (stating position on geographic limitations on **May 20**,

2021). Similarly, Respondents have not articulated any reason why RDS, which does not rent or lease chassis for intermodal transportation, would have any relevant documents.

As a result, there is no need to amend the schedule to address Respondents' concerns.

B. Attempt to Meet and Confer

The efforts to meet and confer with IMCC's counsel to discuss resolution of the discovery issues between the parties were described at page 2 of the Response to Complainant's Request for Expedited Consideration and Immediate Relief, and for the sake of brevity will not be reiterated here. It does bear repeating however that IMCC's counsel refused to discuss an amicable resolution of the production difficulties encountered by the Motion Respondents and simply wanted confirmation, as a basis for the Motion, that documents from the Motion Respondents would not be produced "immediately." As is evident from the above, the Motion Respondents could not possibly have met that demand and, upon being advised of this, IMCC's counsel terminated all further dialogue and filed the Motion approximately three hours later. Similarly, IMCC's counsel refused to discuss the shortcomings, described above, in the IMCC Members' document productions, and curtly informed Respondents' counsel to write a letter describing the deficiencies.¹²

Complainant's Response: At that meet and confer, the non-producing Respondents had no explanation for why the productions would not be produced in compliance with the Amended Scheduling Order, and provided IMCC with no additional estimates as to when the productions might arrive. As noted above, the non-producing Respondents first notified Complainant of their reasons in in their opposition brief, seven days after the meet and confer.

¹² Respondents intend to attempt in good faith to resolve the IMCC Members' outstanding deficiencies with counsel for Complainant and the IMCC Members they represent. However, Respondents expressly reserve all rights and remedies with respect to the discovery responses of Complainant and the subpoenaed IMCC Members.

II. THE TIME TO PRODUCE DOCUMENTS SHOULD BE EXTENDED

The Commission's regulations require that discovery be completed within 150 days of the service of a respondent's answer. 46 C.F.R. §502.141(g). While that may be a reasonable time to complete discovery in a relatively straightforward case between a single complainant and a single respondent, it is not realistic for a case involving fourteen Respondents, and a complainant association with 170 members, in which it is alleged that IMCC Members have sustained \$1.8 billion in damages.

Respondents acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve. Scheduling orders are an important part of this process, and are not taken lightly. However, at the same time it must be noted that it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended by administrative law judges and the Commission, and for scheduling orders to be revised accordingly. Indeed, Respondents believe that absent resolution via settlement or dispositive motion, it is likely more common for decisions on the merits to require more time than allotted under the regulations than not.¹³

There are also policy considerations which favor allowing sufficient time for a full development of the evidentiary record before an agency over strict adherence to a particular schedule. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002)(policy and

¹³ Some recent examples of this include FMC Docket No. 15-11 (complaint filed November 16, 2015, FMC decision now due October 18, 2021); FMC Docket No. 17-05 (complaint filed May 23, 2017, initial decision issued May 24, 2019, Commission decision issued July 26, 2021); FMC Docket No. 19-02 (complaint filed December 20, 2018, initial decision issued March 30, 2021, case stayed from June to November of 2020). None of these cases involved the number of respondents, third party witnesses, and potential legal issues that are involved in this proceeding.

responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission). Adherence to a schedule should not override these policy considerations. See also, *Anderson International Transport and Own Anderson – Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, 31 S.R.R. 1091 (FMC 2009)(citing policy considerations discussed in *Hudson* as basis for reopening the record).

Respondents appreciate the modification of the 150 day limitation which the Presiding Officer has given to the parties and have done a great deal of work to complete the document production phase of the litigation; however, as demonstrated above, the number of Respondents, the broad scope of documents demanded and search terms imposed by Complainant, and the need to obtain evidence from IMCC Members that is critical to the Respondents’ defenses, warrants that Respondents request additional flexibility in the Schedule.

Respondents believe that good cause has been demonstrated to modify the deadlines in the Second Amended Scheduling Order and propose the following revisions to the schedule to enable the parties to complete the work that this complex case requires:

<u>Event</u>	<u>Current Deadline</u>	<u>Requested Deadline</u>
Complete document production:	September 3, 2021	October 1, 2021
Depositions begin:	September 20, 2021	September 20, 2021 ¹⁴

¹⁴ Depositions of witnesses from Consolidated Chassis Management, LLC have already been noticed for September 20 and 22, 2021, and Respondents’ counsel has advised these witnesses will be produced on the requested dates. The deposition of Hapag Lloyd is also scheduled to begin on October 1, 2021.

Complete fact depositions:	November 18, 2021	December 10, 2021
Joint stipulation of facts:	December 7, 2021	December 20, 2021
Disclosure of initial expert reports:	December 16, 2021	January 20, 2021
Disclosure of rebuttal expert reports:	January 10, 2022	February 10, 2022
Expert discovery cut-off:	January 24, 2022	February 24, 2022
Completion of discovery:	February 7, 2022	March 10, 2022
Motions for Summary Judgment	February 22, 2022	March 24, 2022

Complainant's Response: IMCC does not oppose a schedule extension to rectify the non-Producing Respondents' non-compliance with the Amended Scheduling Order. IMCC is moving forward diligently with depositions for the Respondents for which it has already received documents.

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Respectfully submitted,

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By: /s/ Gerald Morrissey

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DATED: September 14, 2021

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Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that, on September 16, 2021, a true and current copy of the foregoing Complainant's Response to Respondents' Cross-Motion for an Amended Scheduling Order was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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